



**IN THE COURT OF THE X ADDL. CITY CIVIL &
SESSIONS JUDGE, BENGALURU (CCH-26)**

Dated this the 14th day of January 2026

Present

Sri Vijaya Kumar Rai, B.Com., LL.B.,
X Addl. City Civil & Sessions Judge,
Bengaluru.

Ex.No.923/2023

<u>Decree Holder:</u>	Sri A. Lakshmipathy s/o Late L. Andanappa Aged about 60 years R/at No.7, 4 th 'A' Cross M.M. Layout, Kavalbyrasandra Bengaluru-560 032. (In person)
<u>Vs.</u>	
<u>Judgment Debtor:</u>	Smt.Venkatalakshmi (Dead by Lrs) 1(a) Sri Vishwachari @ Vishweshwarachar H/o Venkatalakshmi Aged about 52 years 1(b) Sri Jagadeesh s/o Venkatalakshmi & Vishwachari Aged about 26 years 1(c) Sri Sharat s/o Venkatalakshmi & Vishwachari Aged about 21 years All are r/at No.7, Ground Floor Maheshwaramma Temple Street J.C.Nagar, Bengaluru-560 006. (By Sri S. Shankarachar, Adv.)

I.As.No.5 & 6

<u>Applicant:</u>	Sri A. Lakshmipathy - Decree Holder
v/s	
<u>Opponents:</u>	Smt.Venkatalakshmi (Dead by Lrs) - Judgment Debtor

Provision under which the applications are filed	-	U/S 151 CPC
Reliefs sought for	-	Direction to pay interest for the delayed payment and to issue attachment warrant
The date on which the applications are filed	-	10.10.2025
Number of the applications	-	I.As.No.5 & 6
The date on which the objections are filed by different opponents	-	24.10.2025
The date on which the orders were passed on the said application	-	14.01.2026

ORDERS ON I.As.No.5 & 6

I.A.No.5 is filed by the decree holder under Section 151 CPC to direct the judgment debtor to pay the interest on the decretal amount and I.A.No.6 is filed by the decree holder under Section 151 CPC for issuance of attachment warrant for the recovery of amount.

2. The decree holder in the application has contended that the judgment debtor has caused unnecessary delay in payment of the decretal amount after passing of the decree and therefore the judgment debtor is liable to pay interest of Rs.2,53,026/-.

3. The application is seriously objected by the judgement debtor contending that payment of interest to the decretal amount is not contemplated in the decree and therefore the decree holder cannot claim the interest.

4. Heard the arguments.

5. The points for determination of this Court are:-

1) *Whether in an execution petition, the executing court can direct the judgment debtor to pay interest on the decretal amount for the delay caused by the judgment debtor in paying the decretal amount if such interest is not ordered to be paid in the decree?*

2) *What order?*

6. Finding of this Court on the above points are as hereunder:-

Point No.1:- In the negative

Point No.2:- As per final order, for the following:-

- : REASONS : -

7. **POINT No.1**:- It is an admitted fact that in the decree passed by this Court while passing an order of ejectment directed the judgment debtor to pay rent of ₹7,000/- per month from 22.08.2017 to 22.07.2023 for a period of 72 months till the date of delivery of possession of the petition schedule property. It is also not in dispute that the amount payable is Rs.5,04,000/- and the

decree holder is also entitled for costs of the suit to the tune of Rs.36,099/-. Further, in the decree, the Court has directed to deduct a sum of ₹2,50,000/- paid by the judgment debtor to the decree holder as security deposit. Therefore, it is an admitted fact that the total liability payable by the judgment debtor to the decree holder was Rs.2,90,099/- and the entire amount of ₹2,90,099/- is paid by the judgment debtor. But, the amount was not paid immediately after passing of the decree or filing of the execution petition. Initially a sum of ₹80,000/- was paid and later Rs.1 lakh was paid on 12.08.2025 and the remaining amount of ₹1,10,099/- was paid on 17.09.2025. In this way, the decreetal amount is cleared.

8. The grievance of the decree holder is that the judgement debtor has not paid the amount immediately after passing of the decree and therefore he is liable to pay interest for the delayed payment. It is true that when the Court has passed the decree, the judgment debtor should have paid the entire amount immediately after passing of the decree. The delay caused in payment of the decreetal amount has resulted loss to the judgment debtor. But, the question for consideration is when the decree do not contemplate payment of interest for the delayed payment, whether the executing court can direct the judgment debtor to pay the interest for the delayed payment.

9. It is well settled law that the executing court cannot go beyond the decree. In other words, if the decree is not passed directing the judgment debtor to pay the interest and if the judgment debtor has not paid the decretal amount within the specified time, the executing court cannot fix the interest and direct the payment of interest for the delayed payment. The decree holder should have sought such a relief in the original suit itself. Since such an order is not passed in the suit, the executing court cannot rewrite the decree. Therefore, though the decree holder is justified in expressing his grievance for the delayed payment, it is beyond the scope of the executing court to fix the rate of interest and direct the judgment debtor to pay the interest for the non-payment of amount immediately after passing of the decree. Further, in the decree, the Court has not even fixed the time limit for the payment of the decretal amount. Under these circumstances, this Court, being an executing court is unable to compensate the decree holder by directing the judgment debtor to pay the interest for the delayed payment. In view of this, the court cannot direct the judgment debtor to pay the interest as claimed by the decree holder. Accordingly, point No.1 is answered in the negative.

10. **Point No.2:-** In view of the answer given to point No.1 in the negative, this court cannot direct the judgment debtor to pay

the interest for the delayed payment. The amount as decreed in the original suit is paid by the judgment debtor therefore, the execution is required to be closed as fully satisfied. However, it is made clear that decree holder is at liberty to pursue his remedy for mesne profits as directed in the decree without being influenced by the observations made in the present order. Accordingly, the following order is passed:-

ORDER

I.A.No.5 & 6 filed by the decree holder to direct the judgment debtor to pay the interest for the delayed payment are rejected.

The execution petition is closed as fully satisfied.

However, it is made clear that the decree holder is at liberty to seek mesne profits as directed in the decree without being affected by the disposal of this execution petition.

(Dictated to the Dictaphone and Speech to Text App, carried out corrections by the Senior Sheristedar, taken print out and then pronounced in the Open Court on this the 14th day of January, 2026).

(Vijaya Kumar Rai)
X Addl. City Civil & Sessions Judge
Bengaluru.

**VIJAYA
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RAI B**

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signed by
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